

Contentious Chamber

Decision on the merits 39/2024 of February 22, 2024

File number: DOS-2020-02861

Subject: Complaint for refusal to delist by a search engine – representation of the complainant in accordance with Article 80.1 of the GDPR

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Yves Pouillet and Jelle Stassijns, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (hereinafter "LTD");

Considering the internal regulations as approved by the Chamber of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X1, hereinafter referred to as "the complainant";

Represented by Ms. X2, e-reputation consultant of company X3

The defendants:

Y1, hereinafter referred to as "the first defendant";

Y2, hereinafter referred to as "the second defendant";

Hereinafter collectively referred to as "the defendants";

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Having for counsel

Master Gerrit VANDENDRIESSCHE, gerrit.vandendriessche@altius.com and Master Louis-Dorsan JOLLY, louis-dorsan.jolly@altius.com, lawyers whose office is located at 1000 Brussels, avenue du Port 86C, box 414.

I. Facts and procedure

1. The subject of the complaint filed on June 18, 2020, with the Data Protection Authority (DPA) by the complainant represented by the French e-reputation company X3, concerns the refusal by the first defendant to delist a news article from the newspaper La Dernière Heure Les Sports published on the website of this newspaper in 2007 under the title “..” [...].

2. This article reports judicial facts concerning the complainant. It mentions the name and surname of the complainant and informs internet users about his conviction by labor courts in 2007.

3. More specifically, the article reports that in 2007, the complainant was found guilty of involuntary manslaughter due to lack of foresight or precaution, as well as violations of legislation regarding the use of work equipment and safety and health signaling at work. This conviction is a consequence of the death (...) of a worker from the company ... of which the complainant was the general director.

4. In light of the adjustments made since the accident at the time of adopting its decision and in order not to compromise the professional activities of the complainant, the court seized decided to suspend the pronouncement of the conviction. As reported in the press article, the complainant was nonetheless declared civilly liable and was ordered to compensate the parents of the deceased worker.

5. It appears from the documents in the files submitted by the defendants and the documents produced by the complainant that prior to the referral to the DPA, the delisting of this URL was

requested three times from the first defendant, via the standard form made available online by the latter for the delisting of search results.

6. Thus, the defendants report that in 2018, the complainant's son, Mr. S. D., submitted a first request for delisting of the disputed URL on behalf of his father. The first defendant acknowledged receipt of the request on the same day, analyzed and processed the request, and responded the following day, namely on (...), justifying its response by indicating that it had decided not to intervene regarding this URL due to factors such as its relevance in the context of the complainant's professional life.

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7.

The complainant's son reiterated his request by email addressed to the first defendant later in 2018, and the first defendant responded on the same day that it maintained its decision.

8.

At the end of 2019, Ms. X4, e-reputation consultant for company X3, submitted on behalf of the complainant a second request for de-referencing the same disputed URL via the online form of the first defendant.

9.

The first defendant acknowledged receipt of the request on the same day and, after analyzing the request, noted that the news article only concerned the complainant's professional life, and requested (...) for further information regarding the complainant's "current" profession (i.e., the one held at the time of the de-referencing request) in order to continue examining the request.

10.

Ms. X4 indicated the next day that the content of the disputed news article related to a job that the complainant was still holding. On this basis, the first defendant stated in November 2019 that it had decided not to de-reference the disputed URL due to factors such as its relevance to the complainant's professional life.

11.

In May 2020, Ms. X2, also an e-reputation consultant for company X3, submitted on behalf of the complainant a third request for de-referencing the same disputed URL via the online form of the first defendant. The first defendant acknowledged receipt of the request on the same day and indicated a week later that it had decided not to proceed with the requested de-referencing for reasons similar to those mentioned in the context of the first two requests that had been addressed to it. Ms. X2 reiterated her request in an email in June 2020 addressed to the first defendant. The first defendant responded the next day that it maintained its position.

12.

Thus, on several occasions, the first defendant considered that it was not obliged to respond favorably to the request for de-referencing the disputed URL in the terms below and invited the complainant to contact the APD in case of disagreement with this decision.

"After examining the balance between the interests and rights associated with the content in question, including factors such as its relevance to your client's professional life, (read the search engine) has decided not to block it.

For the moment, we have decided not to intervene regarding this URL.

(...)"

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13.

As stated in point 1, the complainant represented by the aforementioned French e-reputation company X3 filed a complaint with the APD on June 18, 2020.

14.

This complaint form is addressed to the APD by company X3 on behalf of the complainant. It is stated by the said company that:

"the refusal of (read the search engine) does not, in our opinion, comply with the latest clarifications from the Council of State regarding the application of the right to de-referencing. Regarding an article reporting a conviction related to our client for events dating back to 1998 and a judgment rendered in

2006, the inclusion of this processing of personal data in search engines is no longer relevant today and has very significant repercussions in his life. There is no strictly necessary character to maintain these links justifying the refusal of (read the search engine). Furthermore, regarding an accident, our client having no role in public life and the facts being very old, we do not understand the refusal of (read the search engine). (...)

Our request for the Right to be Forgotten has been refused. Following this, we contacted the editorial office. We had several exchanges with the responsible lawyers, but unfortunately, they did not lead to a common agreement. You will find attached all the exchanges in question. That is why we are today filing a complaint for the reasons mentioned above in order to contest these decisions which do not seem fair to us."

15.

In support of the complaint filed by the complainant, company X3 attaches a "mandate" received from the complainant, the text of which reads as follows: "I, the undersigned X1 [read the complainant] (...) declare and attest that company X3 (...) is authorized to represent me exclusively before publishers and hosts of websites in order to carry out the mission entrusted to it."

16.

On June 29, 2020, the complaint is declared admissible by the First Line Service (SPL) of the APD based on Articles 58 and 60 of the LCA, and the complaint is forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

17.

On July 28, 2020, the Contentious Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the case can be examined on the merits.

18.

On the same date, the concerned parties are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are

1 It is the Contentious Chamber that emphasizes. The highlighted elements demonstrate that it is indeed company X3 that files the complaint on behalf of its client, the complainant.

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also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

19. The deadline for receiving the defendants' response conclusions was set for September 8, 2020, the deadline for the complainant's reply conclusions for September 28, 2020, and the deadline for the defendants' reply conclusions for October 20, 2020.

20. On August 26, 2020, the defendants requested a copy of the file (Article 95, §2, 3° LCA), which was transmitted to them on August 27, 2020.

21. By their same letter of August 26, 2020, the defendants agreed to receive all communications related to the case electronically and expressed their wish, subject to a thorough examination of the file, to avail themselves of the possibility of being heard in accordance with Article 98 of the LCA.

22. On September 8, 2020, the Contentious Chamber received the defendants' response conclusions.

23. The complainant did not submit a reply.

24. On October 20, 2020, the Contentious Chamber received the defendants' reply and summary conclusions. Their arguments can be summarized as follows:

- As a primary matter, the defendants argue that the complaint is inadmissible as it was filed by the French law company X3 on behalf of the complainant in violation of the provisions of Article 80.1 of the GDPR read in conjunction with Article 220.2 of the LTD;
- As a subsidiary matter, if the Contentious Chamber were to consider that the complaint was validly filed, the defendants argued at the time that it would be appropriate to stay the proceedings (...).
- As a more subsidiary matter, the defendants argue that the complaint is unfounded as there is no basis for pursuing the second defendant who is not responsible for processing. Furthermore, there is no basis for ordering the de-referencing of the disputed article since the conditions for de-referencing are not met, and the outcome of the balancing of interests reveals a predominant public interest in accessing the information contained in the referenced article. The seriousness of the journalistic source, the accuracy of the reported facts, the connection of the facts with the complainant's

professional activities both at the time and at the date of drafting the conclusions, and the role played by the complainant in public life as a businessman are all criteria invoked by the search engine in support of its decision not to de-reference. The defendants conclude that the referencing of the disputed article is necessary for freedom of expression and information within the meaning of Article 17.3.a) of the GDPR and that none of the grounds in Article 17.1.a) to f) of the GDPR are applicable.

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II. Motivation

25.

The Dispute Chamber recalls that pursuant to Article 77.1 of the GDPR, "without prejudice to any other administrative or judicial remedy, any data subject has the right to lodge a complaint with a supervisory authority, in particular in the Member State of their habitual residence, their place of work, or the place where the alleged infringement occurred, if they consider that the processing of personal data concerning them infringes this Regulation."

26.

This Article 77.1 is supplemented by Article 80.1 of the GDPR, which provides that "the data subject has the right to mandate a body, organization, or association that is not for profit, which has been validly established in accordance with the law of a Member State, whose statutory objectives are of public interest and is active in the field of protecting the rights and freedoms of data subjects in the context of the protection of personal data concerning them, to lodge a complaint on their behalf, exercise on their behalf the rights referred to in Articles 77, 78, and 79, and exercise on their behalf the right to obtain compensation referred to in Article 82 when the law of a Member State provides for it."

27.

Regarding the conditions set forth by Belgian law in execution of Article 80.1 of the GDPR, they are outlined in Article 220.2 of the LT, are cumulative, and are as follows:

"§ 2. In the disputes provided for in paragraph 1, a body, organization, or non-profit association must:

1° be validly established in accordance with Belgian law;

2° have legal personality;

3° have statutory objectives of public interest;

4° be active in the field of protecting the rights and freedoms of data subjects in the context of the protection of personal data for at least three years.

§ 3. The body, organization, or non-profit association provides proof, by presenting its activity reports or any other document, that its activity

2 It is the Dispute Chamber that emphasizes this. See also the first part of Recital 142 of the GDPR: (142): When a data subject believes that the rights conferred on them by this Regulation have been violated, they should have the right to mandate a body, organization, or association that is not for profit, established in accordance with the law of a Member State, whose statutory objectives are of public interest and which is active in the field of personal data protection, to lodge a complaint on their behalf with a supervisory authority, exercise the right to judicial remedy on behalf of the data subjects, or, if provided for by the law of a Member State, exercise the right to obtain compensation on behalf of data subjects.

3 The preparatory works of the LTD mention that the three-year condition applies both to the existence of legal personality and to the exercise of activities in the field of data protection. See Chamber of Representatives, Draft Law on the Protection of Natural Persons with regard to the Processing of Personal Data, Parl. Doc., DOC 54 31/26/001 (article-by-article commentary – Article 220).

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is effective for at least three years, that it corresponds to its corporate purpose, and that this activity is related to the protection of personal data.

28.

In this case, it appears from the file as detailed above in points 13-15 that it is the company X3 (..), a consultancy in e-reputation established in Marseille, France, that has filed the complaint on behalf of the complainant and represents the latter in the exercise of his right to complain (claim) as defined in Article 77.1 of the GDPR before the Litigation Chamber (APD).

29.

The Litigation Chamber notes that the company X3 is a company in the form of a simplified joint-stock company (...).

30. The Litigation Chamber is of the opinion that there are serious doubts regarding the compatibility with the GDPR of the condition imposed by the Belgian legislator in Article 220.2.1° of the LTD, in that the body, organization, or non-profit association must be validly constituted in accordance with Belgian law. Indeed, the Belgian legislator thereby introduces a more restrictive condition than that provided for in Article 80.1 of the GDPR, which requires that this body, organization, or non-profit association be constituted in accordance with the law of a Member State.

31.

This consideration is of no consequence in this case since, in any event, the company X3 does not meet the other conditions of Article 80.1 GDPR, read in conjunction with Article 220.2 of the LTD, since it is not a "body, organization, or non-profit association" and does not have "a statutory purpose of public interest." It is a commercial company, as evidenced, for example, by its General Terms and Conditions available on its website, which state "the sale of the following services: e-reputation cleaning (URL removal request) and Serp-Sculpting," for which different rates are established.

32.

In support of the above, the Litigation Chamber concludes that this company does not meet any of the conditions of Article 80.1 GDPR, read in conjunction with Article 220.2 of the LTD mentioned above, and that the complainant could not and cannot validly be represented by this company to exercise the right conferred upon him by Article 77.1 of the GDPR.

33. The Litigation Chamber adds that it follows the argumentation of the defendants in this regard, except for the consequences that they believe they can draw from the absence of the complainant's submission of conclusions on this point. Contrary to what the defendants state, the absence of submission of conclusions by the complainant (point 23) - and thus of argumentation in response to the defendants' thesis regarding his non-compliant representation - does not equate to an acquiescence on the part of the complainant. The latter remains free to conclude or not, thereby potentially depriving himself of the opportunity to support his complaint and defend himself against the arguments put forth by the defendant parties. However, it cannot be inferred that he acquiesces to their defense.

III. Corrective Measures and Sanctions

34. Under Article 100.1 of the LCA, the Litigation Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings or reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or erasure of data and notification of such to the recipients of the data;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° refer the file to the public prosecutor of the Brussels Crown, who informs it of the follow-up given to the file;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

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35. In matters of dismissal without further action (Article 100.1.1° LCA), the Contentious Chamber

must justify its decision step by step and:

- pronounce a technical dismissal without further action if the file does not contain or does not sufficiently contain elements likely to lead to a sanction or if it has a technical obstacle preventing it from making a decision;
- or pronounce an opportunistic dismissal without further action, if despite the presence of elements likely to lead to a sanction, the continuation of the examination of the file does not seem appropriate given the priorities of the APD as specified and illustrated in the Contentious Chamber's Policy on Dismissal without Further Action.

36. In the event of a dismissal without further action based on multiple grounds (respectively, technical and/or opportunistic dismissal), the grounds for dismissal without further action must be addressed in order of importance.

37. In the present case, the Contentious Chamber decides to proceed with a technical dismissal without further action based on Article 100.1.1° of the LCA due to the lack of compliance of the complainant's representation with Articles 80.1 of the GDPR and 220.2 of the LTD applied in conjunction with Article 77.1 of the GDPR and consequently, the lack of validity of the complaint filed, which prevents it from making any decision on the merits of the request.

38. The Contentious Chamber specifies in this regard that this technical dismissal without further action leaves intact the complainant's right to file a complaint with the same subject matter as the complaint leading to this decision, in accordance with the conditions for the admissibility of complaints. This present decision of technical dismissal without further action does not prejudice the merits of the complainant's request for delisting that the Contentious Chamber may be called upon to examine if it were to be validly seized in the future.

39. The Contentious Chamber having thus granted the request made by the defendants as a main matter without ruling on the merits of the complainant's request, decides to adopt this decision without convening the hearing requested solely by the latter, the complainant having neither concluded nor requested to be heard.

5 Market Court (Court of Appeal of Brussels), September 2, 2020, 2020/AR/329, p. 18.

6 <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.

7 Policy on Dismissal without Further Action of the Contentious Chamber, 06/18/2021, point 3 ("In what cases is my complaint likely to be dismissed without further action by the Contentious Chamber?"), available at <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>

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IV. Publication of the Decision

40. Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the APD's website. However, in view of all the specific elements and considerations of the case at hand, it is not necessary for the identification data of the parties to this decision to be directly mentioned for this purpose.

In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be filed within thirty days from its notification, with the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant party. Such an appeal may be filed by means of an interlocutory request which must contain the information listed in Article 1034ter of the Judicial Code. The interlocutory request must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Contentious Chamber

8 The request must contain, under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, domicile of the applicant, as well as, where applicable, their capacity and

national register number or business number;

3° the name, first name, domicile and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds of the request;

5° the indication of the judge who is seized of the request;

the signature of the applicant or their lawyer.

9 The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed at the registry.

FOR THESE REASONS,

the Contentious Chamber of the Data Protection Authority decides, after deliberation, to dismiss the present complaint without further action in application of Article 100, § 1, 1° of the LCA.